

Court No. - 29

Case :- WRIT - C No. - 17349 of 2019

Petitioner :- Babu Lal

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Rajeev Kumar Ojha

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Prakash Padia,J.

Heard learned counsel for the petitioner and Sri Mahbood Ahmad, learned counsel appearing for the Purvanchal Vidyut Vitran Nigam Limited.

The petitioner is asking for a new electric connection for domestic use in house no. 33/204-16 Chandua Chitupur City, District Varanasi.

The petitioner in this regard has submitted an application a copy of which has been filed as annexure 3 to the writ petition. The electric connection has not been sanctioned to the petitioner as he has not submitted any proof of the ownership of the said house rather some persons claiming to be the owners has objected to the sanction of the connection.

The contention of learned counsel for the petitioner is that petitioner is one of the co-owners of the said house and that suit no. 572 of 2015 for partition is pending in the civil court before the Civil Judge (Junior Division) Varanasi between the petitioner and respondent no. 5.

On account of the pendency of the suit the other co-owner is not going to give any no objection.

Sri Mahbood Ahmad has pointed out that the application of the petitioner for new electricity connection for the said house can be considered in accordance with annexure 4.2 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid facts and circumstances, we dispose of the this petition with the direction to the 3rd respondent to consider the grant of electricity connection for the petitioner in accordance with law specially annexure 4.2 of the Supply Code most expeditiously, if possible, within one month, if necessary by requiring the petitioner to submit an indemnity bond.

Order Date :- 21.5.2019

SKS